Temporary
4160

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of EIGHTY-FOUR HUNDRED ($8400) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of JOHANN S. GANSZ and MARGARETHA WILCH, nee GANSZ, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situate in the Borough of the Bronx, County of Bronx, City and State of New York, bounded and described as follows, to-wit:

BEGINNING at a point on the northerly side of One hundred and sixty-eighth Street, as now laid out, one hundred (100) feet easterly from the corner formed by the intersection of the northerly side of One hundred and sixty-eighth Street with the easterly side of Union Avenue; running thence northerly at right angles to One hundred and sixty-eighth Street, one hundred and twenty-six (126) feet and forty-two one-hundredths (42/100) of a foot; thence easterly, parallel with One hundred and sixty-eighth Street, twenty (20) feet; thence southerly, and again at right angles to One hundred and sixty-eighth Street, and part of the distance through a party wall, one hundred and twenty-six (126) feet and forty-two one-hundredths (42/100) of a foot to the northerly side of One hundred and sixty-eighth Street; and thence westerly along the same twenty (20) feet to the point or place of beginning. Said premises were formerly known as No. 1009 East 168th Street and are now known as No. 811 East 168th Street.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the sale of said real estate has been received by the Alien Property Custodian;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience;

(c) It appears that it is to the interest of the trust, in that its value will be conserved by this sale by the substitution of the proceeds in lieu of the property sold, because of the difficulty of the administration of such real estate and its consequent deterioration;

(d) The character of this property is such that there are greater possibilities of a decrease in its value than an increase, and that such sale made at this time would, therefore, be to the best advantage of the trust;

(e) Assent to this sale has been furnished the Alien Property Custodian on behalf of said aliens by their attorney-in-fact.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 19, 1925

[No. 4160]

GOVERNMENT PRINTING OFFICE